

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                                  |                           |                                                       |                                    |                                 |
|--------------------------------------------------|--------------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Ashley Puryear                  | Team:<br>Team # 2                                                                                | CCRB Case #:<br>200404970 | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                                  |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 05/25/2004 3:00 PM  | Location of Incident:<br>West 151st Street between Amsterdam &<br>St. Nicholas Avenue, Manhattan | 18 Mo. SOL<br>11/25/2005  | Precinct:<br>30                                       |                                    |                                 |
| Date/Time CV Reported<br>Tue, 05/25/2004 6:19 PM | CV Reported At:<br>CCRB                                                                          | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 05/25/2004 6:19 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Ronald Luparello | 27134  | 916088 | 030 PCT |
| 2. An officer           |        |        |         |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name    |
|------------------------|-----------|--------|-------------|
| 1. POF Tyler Greenfaye | 23816     | 904071 | 30 Precinct |
| 2. SGT Gerald Albin    | 00050     | 896925 | PBMN AC     |

| Officer(s)               | Allegation                                                                          | Investigator Recommendation |
|--------------------------|-------------------------------------------------------------------------------------|-----------------------------|
| A . POM Ronald Luparello | Abuse: Ronald Luparello refused to provide his name and shield number to § 87(2)(b) | A . Unfounded               |
| B . POM Ronald Luparello | Abuse: Ronald Luparello threatened to arrest § 87(2)(b)                             | B . Exonerated              |
| C . An officer           | Abuse: An officer threatened to arrest § 87(2)(b)                                   | C . Unfounded               |

### Synopsis

On May 25, 2004, § 87(2)(b) was driving on 151<sup>st</sup> Street between St. Nicholas Avenue and Amsterdam Avenue in front of the 30<sup>th</sup> Precinct in Manhattan. Her cousin, § 87(2)(b) and his friend, § 87(2)(b) accompanied § 87(2)(b). They were stopped at a traffic light when PO Ronald Luparello approached her vehicle. PO Luparello “tapped” his finger on the passenger’s door. PO Luparello accused § 87(2)(b) of spitting out of the window. § 87(2)(b) and § 87(2)(b) both denied that § 87(2)(b) did so. PO Luparello walked away, however § 87(2)(b) felt that he was discourteous towards her and § 87(2)(b) so she followed PO Luparello into the 30<sup>th</sup> Precinct. § 87(2)(b) asked PO Luparello for his name and shield number and he responded, “You wanna know my name and badge number? I’m gonna write a summons and it will have my name and badge number on it. Walk to your car.”

PO Luparello and § 87(2)(b) walked back to the car together. PO Luparello asked § 87(2)(b) for his identification and § 87(2)(b) refused to provide it. PO Luparello stated, “We can do this one of two ways, I can either take you to the station house and arrest you, or you can give me your name and identification and I’ll give you a summons (Allegation A).” § 87(2)(b) stated that an unidentified officer said, “Enough with the questions, lock him up and lock her up too (Allegation B and C).” PO Luparello issued § 87(2)(b) two summonses- § 87(2)(b).

It is recommended that Allegation A and C be closed as *unfounded* and Allegation B be closed as *exonerated*.

§ 87(2)(g)

### Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on June 21, 2004 (Encl. 5A-5E). § 87(2)(b) stated that on May 25, 2004 at 3:00pm, she was on 151<sup>st</sup> Street, between St. Nicholas Avenue and Amsterdam Avenue in Manhattan. Accompanying her in the vehicle were her cousin, § 87(2)(b) and § 87(2)(b). While stopped at a traffic light, PO Ronald Luparello emerged from behind a van that was stopped in front of her and approached her car. PO Luparello “tapped” his finger on the passenger’s door and asked § 87(2)(b) why he spat out the window. § 87(2)(b) replied that he did not spit out the window and PO Luparello said, “You’re gonna tell me you didn’t spit out of the window? You spit out of the window.” § 87(2)(b) then said, “Officer, what is the problem?” PO Luparello then said, “I’m not talking to you. You sit there and shut your mouth.” He continued to accuse § 87(2)(b) of spitting out of the window but § 87(2)(b) and § 87(2)(b) continued to deny it. § 87(2)(b) confronted the officer with the fact her windows were rolled up. PO Luparello immediately walked away. § 87(2)(b) felt that PO Luparello was discourteous towards her and her cousin so she pulled her car over and followed PO Luparello who was walking towards the 30<sup>th</sup> Precinct. When PO Luparello entered the station house, § 87(2)(b) asked an unidentified female officer, who was standing outside of the precinct, for PO Luparello’s name. Before she could answer however, PO Luparello exited the station house. § 87(2)(b) asked him for his name and shield number and he said, “You wanna know my name and badge number? I’m gonna write a summons and it will have my name and badge number on it. Walk to your car.” As they walked back to § 87(2)(b)’s car, § 87(2)(b) continued to request his name and shield number. PO Luparello simply replied, “You should have just kept going. Now I’m gonna issue you a summons.” § 87(2)(b) asked, “Where is the spit?” PO Luparello replied, “I don’t know, it’s under the car or something.”

PO Luparello instructed § 87(2)(b) to sit in the driver’s side seat. PO Luparello requested § 87(2)(b) who had remained in the car with § 87(2)(b) for his identification. § 87(2)(b) objected and maintained that he did not “do anything wrong”. PO Luparello said, “We do this one of two ways. I can either take you into the station house and arrest you, or you can give me your name and identification and I’ll give you a summons.” § 87(2)(b) continued to refuse because he stated that he did not spit on the ground, and as the conversation continued, three unidentified officers gathered around the car. § 87(2)(b) repeatedly told

§ 87(2)(b) to give his ID to PO Luparello however he refused. § 87(2)(b) lamented to PO Luparello, “I don’t know why you’re doing this, all I wanted was your name and badge number. Why is the situation escalating?” As she said this, PO Luparello told her to “shut [her] mouth.” § 87(2)(b) then noticed that PO 2, a white male officer with glasses, was speaking to her, therefore she exited her car. PO 2 said, “All he needs to do is give his ID. The reason he (PO Luparello) is trying to give him the summons is so that he can document the incident. Therefore, if you make a complaint, he can have the incident documented.” § 87(2)(b) observed PO Luparello take out his handcuffs so she asked PO 2 if she could talk her cousin into providing his identification. PO 2 allowed her to do this and she walked to the passenger side of the car, and told her cousin, “Just give him your ID” PO Luparello said, “Just forget it, I’m gonna lock him up (Allegation A).” An unidentified male officer, then said, “Enough with the questions, lock him up and lock her ass up too (Allegation B and C).”

At this point, PO Luparello pushed § 87(2)(b) away from the car door and said, “That’s enough, you’re obstructing justice.” § 87(2)(b) noted that this push was not an attempt to hurt her and that it was not overly forceful, therefore the use of force will not be pleaded. At this point, § 87(2)(b) provided his identification and walked with PO Luparello to a van where they conversed for several minutes. PO Luparello issued § 87(2)(b) two summonses – § 87(2)(b).

## **Results of Investigation**

### **Efforts to Locate Witnesses**

Contact was made with § 87(2)(b) on July 20, 2004, at which time he agreed to be interviewed as well as bring § 87(2)(b) on July 26, 2004. § 87(2)(b) missed his appointment and did not call to cancel or reschedule. A series of five calls were made to contact § 87(2)(b) a message was left with § 87(2)(b)’s mother or cousin each time. On August 3, 2004, a field visit was conducted to § 87(2)(b)’s residence, a male voice asked, “Who is it?” Investigator Sundar identified himself, there was no response.

### **Officer Identification**

PO Luparello was identified by § 87(2)(b) based on the name and tax number on the summonses that § 87(2)(b) witnessed him write and issue to § 87(2)(b). He later confirmed his role in the incident when he was interviewed by the CCRB.

The roll call for the 30<sup>th</sup> Precinct reflected that PO Tyler S. Green-Faye’s was assigned to the same SNEU team as PO Luparello.

### **Officer Statements**

#### **PO Ronald Luparello and PO Tyler Green-Faye**

PO Ronald Luparello was interviewed at the CCRB on September 9, 2004 (Encl.7A-7B) and PO Tyler Green-Faye was interviewed at the CCRB on September 21, 2004 (Encl.9A-9B). Both officers stated they worked a 4 x 12 tour in marked van. Both officers were in uniform and were in the process of changing tours at the approximate time of the incident. PO Luparello was operating van #8644, which PO Green-Faye and Sgt. Albin were passengers, at the time of the incident.

At approximately 3:00pm on May 25, 2004, PO Luparello, PO Green-Faye and Sgt. Albin entered the van and were about to drive off, when PO Luparello, the driver of the van, observed a passenger of another vehicle, later identified as § 87(2)(b) spit out of the window. The vehicle that § 87(2)(b) was a passenger in was parked approximately 10 feet behind the police van. PO Luparello believed the spit might have hit a parked civilian vehicle, therefore, he exited his van and approached the vehicle. PO Luparello informed § 87(2)(b) that he saw him spit out of the window and PO Luparello pointed to the spit, which was located underneath the rear bumper-guard of a parked car. The driver of the vehicle was later identified as § 87(2)(b). § 87(2)(b) denied that § 87(2)(b) spit. § 87(2)(b) was asked to provide identification by PO Luparello. § 87(2)(b) refused to provide identification and both officers agree that it

appeared that § 87(2)(b) had no intention of being cooperative. PO Luparello stated that he intended to only “warn/admonish” § 87(2)(b) however § 87(2)(b)’s refusal to cooperate “escalated” the situation. The confrontation began to intensify and § 87(2)(b) continued to yell at PO Luparello, thus making matters worse. Both officers stated that her behavior intensified the interaction and she did not make any effort to diffuse the situation.

PO Luparello stated that § 87(2)(b) exited her vehicle and approached him. She attempted to intercede, and put her hand on PO Luparello’s chest. PO Luparello was surprised that she took this action, however he simply instructed her to retract her hand otherwise she would be arrested for obstruction of governmental administration. PO Luparello also informed § 87(2)(b) that he would be arrested for refusal to comply with a lawful order if he did not produce identification.

Both officers stated that § 87(2)(b) spoke “very loud” and attracted several officers to the area. PO Luparello stated that “it almost got to the point where he was going to be ordered to arrest § 87(2)(b) and possibly § 87(2)(b) however he refrained from doing so. PO Green-Faye stated that several officers told § 87(2)(b) and § 87(2)(b) to “calm down.”

PO Luparello denied walking into the station house before § 87(2)(b) exited her vehicle. He stated that § 87(2)(b) did request his name and shield number at one point, however he simply pointed to his name and shield in order to provide the information. PO Luparello issued summonses to § 87(2)(b) because he refused to provide his identification.

#### Sergeant Gerard Albin

Sgt. Albin was interviewed at the CCRB on 7/13/05 (Encl. 11A-11B). Sgt. Albin stated that he was working from 2:00pm to 8:30 p.m. He stated that he was working with seven other uniformed officers in a police van. He did not have any memo book entries pertaining to the incident (Encl. 10A-10C).

Sgt. Albin stated that there was “a little bit of commotion” in front of the station house because it was a change of tour and there was a vehicle blocking traffic. Sgt. Albin observed PO Luparello speaking with § 87(2)(b) and § 87(2)(b) next to the vehicle that was blocking traffic. § 87(2)(b) was loud at first but then became “somewhat apologetic,” but he could not hear what she was saying. Though § 87(2)(b) was verbally aggressive, there was no physical contact between her and PO Luparello. PO Luparello remained professional. Sgt. Albin stated that he was the supervisor that day so PO Luparello informed him that he was going to issue § 87(2)(b) two summonses. Sgt. Albin was not otherwise involved.

#### **Police Documents**

##### Summonses

PO Luparello issued § 87(2)(b) summonses for § 87(2)(b) (Encl. 13A).

##### Roll Call

Roll call indicates PO Luparello, PO Green-Faye and Sgt. Albin worked 4:00pm to 12:00am and assigned to the Atlas team (Encl. 12A-12Z).

#### **Complainant’s Criminal Conviction History**

As of July 25, 2005, the NYPD discontinued the CCRB’s direct access to the BADS database. Although the NYPD is fulfilling the CCRB’s request for BADS records, it has refused to provide the CCRB with the arrest histories of CCRB witnesses.

#### **Complainant’s CCRB History**

§ 87(2)(b) has no CCRB history beyond the present complaint (Encl. 2A).

### Officer's CCRB History

PO Ronald Luparello has been a member of the NYPD for 10 years and has no substantiated CCRB allegations (Encl.1A).

## Conclusions and Recommendations

### Undisputed Facts

PO Luparello approached § 87(2)(b) he denied that he spit out of the window. § 87(2)(b) refused to provide identification to PO Luparello when asked. PO Luparello issued § 87(2)(b) two summonses, one for § 87(2)(b)

### Disputed Facts

§ 87(2)(g)

§ 87(2)(g)

### Credibility

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

### Allegation A: PO Luparello refused to provide his name and shield number to § 87(2)(b)

When § 87(2)(b) asked for PO Luparello's name and badge number, she claimed that he did not provide the information and instead told her that it would be on the summonses that he was going to issue § 87(2)(b) PO Luparello stated during his interview that he provided § 87(2)(b) with the information she requested by pointing to his shield. During § 87(2)(b)'s initial contact to the CCRB, she was able to provide PO Luparello's name. According to Police Patrol Guide Procedure 203-09, officers are required to "Courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so." § 87(2)(g)

§ 87(2)(b) It is therefore recommended that Allegation A be closed as *unfounded*.

### Allegation B: PO Luparello threatened to arrest § 87(2)(b)

According to § 87(2)(b) PO Luparello stated to § 87(2)(b) "We do this one of two ways, I can either take you to the station house and arrest you, or you can give me your name and identification and I'll give you a summons." PO Luparello stated during his interview at the CCRB that he informed § 87(2)(b) that, "He would be arrested for 'refusal to comply with a lawful order' if he did not produce his identification." § 87(2)(b) was not complying with PO Luparello's order to provide identification reveals that he most definitely could have been arrested. § 87(2)(g)

§ 87(2)(b) PO Luparello eventually issued § 87(2)(b) a summons for § 87(2)(b). § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation B be *exonerated*.

**Allegation C: An Officer threatened to arrest § 87(2)(b)**

§ 87(2)(b) also claims that an unidentified male officer threatened to arrest her, specifically he said, “...lock her ass up too.” § 87(2)(b) did not elaborate on the description of the officer and stated that she would not be able to pick him out of a photo array. However, PO Luparello, PO Green-Faye and Sgt. Albin stated that they did not hear any officer say that. § 87(2)(b) did not allege the threat of arrest in her initial statement to the CCRB. It is therefore recommended that Allegation C be *unfounded*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: